Public International Law

REVISION

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MQ Teaching & Unit Surveys

We want to hear from you!

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Revision

TOPIC 1: INTRODUCTION TO INTERNATIONAL LAW

- What is International Law; Nature & Importance of international law; Impact on day-to-day activities
- Global Issues of common concern
- A living system: evolves in the light of new interests and technologies
- Rooted exclusively in the consent of States
- Issues of compliance & non-compliance, different theories of compliance (e.g. self-interest and necessity).

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TOPIC 2: SOURCES OF PUBLIC INTERNATIONAL LAW

- Art. 38 of the Statute of the International Court of Justice
- Treaties, customary international law and general principle: primary sources
- Customary international law ('evidence of general practice accepted as law')
- Judicial decisions and scholarly contributions: secondary sources of law (incl. role of International Law Commission (ILC))
- Interaction between treaty & customary law (e.g. treaties that codify existing customary law)
- Unilateral Statements/Acts
- Non-binding instruments & their value e.g. UN General Assembly resolutions and their role in the formation of new custom / evidence of state practice

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TOPIC 3: LAW OF TREATIES

- Vienna Convention on the Law of Treaties 1969 (VCLT)
- Definition of treaty
- Authority to conclude treaties, modes of consent, signature, ratification, and entry into force
- Dealing with Treaties in Australia other countries (process of transformation of treaties into domestic law)
- Grounds of invalidity (Arts 46–53, & including coercion & use of force)
- Art 53 VCLT: a treaty is void if it 'conflicts with a peremptory norm of general international law'
- Reservations (incl. legal effects of impermissible/invalid reservations)
- Treaty Interpretation (Arts 31 and 32 VCLT)

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TOPIC 4: STATEHOOD & LEGAL PERSONALITY

- Subjects of international law
- Criteria of Statehood
- Recognition
- Modes of Acquisition
- Right of Peoples to self-determination (secession, decolonisation context under international law e.g. Chagos case)

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TOPIC 5: JURISDICTION

- Introduction to jurisdiction
    - Forms of jurisdiction ('Jurisdiction to Prescribe'/ 'Jurisdiction to Enforce'/ 'Jurisdiction to Adjudicate')

- Grounds for asserting jurisdiction (e.g. domestic courts establishing criminal jurisdiction in cases involving a foreign element)
    a) Principle of territoriality (territorial jurisdiction)
    b) Principle of nationality (jurisdiction on the basis of nationality)
    c) Principle of protection (protective jurisdiction)
    d) Principle of passive 'personality'
    e) Principle of universality (universal jurisdiction)
    f) Issues of concurring jurisdiction (where more than one States assert jurisdiction over the same act)

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TOPIC 6: IMMUNITIES

- **State immunity**
  - Sovereign Acts: *acta jure imperii* (absolute immunity)
  - Commercial Acts: *acta jure gestionis* (restricted immunity)
  - Violation of international human rights law or international humanitarian law

- **Immunity of state representatives**
  - Personal immunity (*ratione personae*) – applies to highest level officials, during time in office
  - Functional immunity (*ratione materiae*) - in relation to specific official acts, during and after leaving office

- **Diplomatic Protections**
  - Special protections given to ambassadors, embassy staff, and embassy premises (Vienna Convention on Diplomatic Relations

- **Immunities of IOs**

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TOPIC 7: STATE RESPONSIBILITY

- Meaning and constituent elements of State responsibility (i.e. a. wrongful conduct b. state attribution)
- Grounds to preclude wrongfulness (e.g. distress, force majeure, self-defence, distress, necessity)
- Consequences of the breach (cessation & reparation)
- Who may invoke a state's international responsibility (directly-injured states & also, non-injured states for *erga omnes* obligations)
- Countermeasures (non-forcible measures taken in response to an internationally wrongful act)
- see ILC Draft Articles on State Responsibility

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TOPIC 8: INTERNATIONAL DISPUTE RESOLUTION (PEACEFUL SETTLEMENT)

- **Settlement of disputes under general international law**
    - Meaning/existence of a dispute
    - Obligation to pursue peaceful settlement
    - Modes of dispute settlement (adjudicatory means/diplomatic means)

- **International Court of Justice**
    - Practical Considerations
    - The Court's jurisdiction
    - Expression of consent to jurisdiction
    - Provisional measures
    - Legal effect of ICJ decisions

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TOPIC 9: USE OF FORCE

- Meaning of use of force / historical aspects
- The UN Charter framework on the threat/use of force
- Elements of self-defence
- Use of armed force & right of self-defence ‘if an armed attack occurs’
- Humanitarian interventions and R2P

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TOPIC 10: COLLECTIVE SECURITY

- Meaning of collective security
- The United Nations system (main aims and objectives)
- The role of the UN principal organs in the maintenance of international peace
- UN SC acting under Ch.VI and under Ch.VII of the UN Charter
- Non-forcible & Forcible and measures authorised by the UN Security Council e.g. UN peacekeeping and peace operations
- Binding character of UN Security Council resolutions under Ch.VII

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TOPIC 11: INTERNATIONAL CRIMINAL LAW

- Crimes directly criminalised by international law
- Historical perspectives: From the Nuremberg & Tokyo Trials
- International Criminal Tribunals for former Yugoslavia and Rwanda (established under UN SC resolutions)
- International Criminal Court (established by the Rome Statute)
- ICC scope of material jurisdiction & temporal jurisdiction; principle of complementarity
- Role of UN SC, referring cases to ICC for investigation

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